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Case Number: 25STCV01962 Hearing Date: August 4, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

STEPHANY
BUENDIA,

Plaintiff,

vs.

JAVAHERIAN
& RUSZECKI,

Defendant.

Case No.:

25STCV01962

Hearing Date:

August 4, 2026

Hearing

Time: 10:00 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF

STEPHANY BUENDIA'S MOTION FOR SUMMARY JUDGMENT, OR, IN THE ALTERNATIVE,
SUMMARY ADJUDICATION

AND RELATED CROSS ACTION

Background

On January

24, 2025, Plaintiff Stephany Buendia ("Plaintiff") filed this action against Defendant Javaherian & Ruszecki ("JARU"), alleging six causes of action. On March 10, 2025, Plaintiff filed the operative first amended complaint ("FAC") alleging a single cause of action for declaratory relief.

On February 26, 2025, JARU filed a cross-complaint against Cross-Defendants Downtown LA Law Group, LLP and Farid Yaghoubtil (jointly, "Cross-Defendants") alleging three causes of action for (1) intentional interference with contract; (2) negligent interference with prospective economic relations; and (3) appropriation of name and/or likeness.

On March 13, 2025, Cross-Defendants filed a special motion to strike the first and second causes of action in the cross-complaint, as well as several specific paragraphs therein. On May 1, 2025, the Court granted Cross-Defendants' special motion to strike as to paragraph 15 and the first and second causes of action. The motion was denied in all other respects.

On June 27, 2025, JARU, Seymone Javaherian, and Mark Ruszecki (collectively, "Cross-Complainants") filed a first amended cross-complaint against Cross-Defendants alleging four causes of action for (1) fraud; (2) conversion; (3) punitive damages for breach of an obligation not arising from contract, § 3294(a); and (4) appropriation of likeness.

Plaintiff now moves for summary

judgment on her FAC for declaratory relief against JARU or, in the alternative, Plaintiff moves for summary adjudication under Code of Civil Procedure section 437c, subdivision (f)(1), of each of the three declarations sought in the prayer of the FAC. JARU opposes. Plaintiff replied.

Evidentiary Objections

Plaintiff submits five objections.

The Court rules on the evidentiary objections as follows:

Objection Nos. 1, 2, 3, 4, 5:
sustained

Legal Standard

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." ((Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." ((Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467); (Code Civ. Proc., § 437c, subd. (c).)

A motion for summary judgment or adjudication's function is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. ((Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 843.) In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a

triable, material factual issue.” ((Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Summary judgment or adjudication is proper when “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” ((Code Civ. Proc., § 437c, subd. (c)); (see also Villa v. McFerren (1995) 35 Cal.App.4th 733, 741.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. ((Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) As to each cause of action as framed by the complaint, the defendant moving for summary judgment or adjudication must satisfy the initial burden of proof by presenting affirmative evidence to disprove at least one essential element of the plaintiff’s cause of action, show that an element cannot be established, or establish an affirmative defense. ((Code Civ. Proc., § 437c, subd. (p)(2)); (Sanchez v. Swinerton & Walberg Co. (1996) 47 Cal.App.4th 1461, 1465.)

Once the moving defendant meets its burden for a particular cause of action, the burden shifts to the nonmoving plaintiff. ((Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Ibid.)

On a motion for summary judgment or adjudication, the moving party’s supporting documents are strictly construed, while the nonmoving party’s documents are liberally construed. (D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 24 (D’Amico).) Any “doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion.” (Ibid.)

Discussion

Plaintiff moves

for summary judgment on her singular cause of action for declaratory relief under two theories: “(1) The June 2021 contingency fee arrangement JARU asserts as the predicate for its claimed lien against the proceeds of Ms. Buendia’s \$825,000 settlement in Buendia v.

Lyft, Inc., Orange County Superior Court Case No.

30-2023-01329390-CU-PA-CJC, was never reduced to a writing satisfying Business and Professions Code section 6147. Section 6147(b) renders the alleged agreement voidable

at Ms. Buendia's option, and Ms. Buendia has voided it. (2) No evidence supports JARU's entitlement to quantum meruit. JARU's verified responses to Form Interrogatory No. 17.1 identify 'the written retainer/fee agreement' and 'contemporaneously-created records reflecting time spent' as the documents on which JARU relies for its claimed entitlement, and JARU has produced no such documents. With no admissible evidence of attorney time and an admission that no costs have ever been advanced, the quantum meruit value of JARU's claimed services is \$0." (Notice of Mot., 2:7-17.)

A.

Allegations of the FAC

Plaintiff alleges

the following, inter alia, that "on or about June 23, 2021, pursuant to an oral contingency fee agreement, JAVAHERIAN & RUSZECKI agreed to provide legal representation to BUENDIA with respect to a personal injury claim against LYFT, INC." (FAC, ¶ 6.)

"Thereafter, on or about November 7, 2022, by written letter, BUENDIA terminated JAVAHERIAN & RUSZECKI's legal representation in accord with her rights as set forth in Business & Professions Code section 6147(d) and demanded her file be turned over to her new counsel." (FAC, ¶ 7.) "In or about June 6, 2023, Downtown LA Law Group on behalf of BUENDIA filed an action in the State of California Superior Court, Case Number 30-2023-01329390-CUPA-CJC, entitled STEPHANY BUENDIA VS. LYFT, INC., et.al... Said ACTION was for the same claim that BUENDIA originally retained" JARU. (FAC, ¶ 8.)

Plaintiff believes that during JARU's representation of her, it "never performed or provided any material legal services or expended much time or effort in the course of that representation and that the reasonable value of their service is nothing or nominal at best." (FAC, ¶ 9.)

Then, "[o]n or

about November 22, 2024, Downtown LA Law Group settled BUENDIA's personal injury claims against LYFT, INC., a Delaware Corporation, with its insurance carrier, Allstate, in the amount of \$825,000.00." (FAC, ¶ 11.) That same day, JARU "communicated their position that they were legally entitled to have a lien for attorney fees and costs against any settlement." (FAC, ¶ 10.) Downtown LA Law Group requested that JARU "submit the amount of the lien for attorney fees and costs they were requesting, however, JAVAHERIAN & RUSZECKI failed to do so." (FAC, ¶ 12.)

Accordingly,

Plaintiff alleges that “[a] dispute has arisen between JAVAHERIAN & RUSZECKI and BUENDIA with respect to whether JAVAHERIAN & RUSZECKI is entitled to enforce their lien for attorney fees and costs in accord with an alleged formal contingency agreement, whereas BUENDIA contends JAVAHERIAN & RUSZECKIY is not entitled to any lien pursuant to the alleged formal contingency agreement but may be only entitled to the ‘reasonable value’ of their services based on a quantum meruit claim. BUENDIA is informed and believes and thereon alleges the quantum meruit claim of JAVAHERIAN & RUSZECKI is nothing or at best nominal.” (FAC, ¶ 13.) “On or about December 2, 2024, Allstate issued a settlement check/draft for the sum of \$825,000 naming BUENDIA, Downtown LA Law Group, and JAVAHERIAN & RUSZECKIY as the payees,” and “[a]s of the filing of this Complaint,” on January 24, 2025, JARU “has refused to state the amount of their lien. JAVAHERIAN & RUSZECKI has expressly stated it will not waive its claim for a lien and refused to endorse the settlement check issued and thus, Plaintiff is unable to access her much needed funds.” (FAC, ¶ 15.)

B.

Lien Against Settlement

Proceeds

An

attorney’s lien may arise only by contract. ((Fletcher v. Davis (2004) 33 Cal.4th 61, 66.) Under Business and Professions Code section

6147, subdivision (a), “[a]n attorney who contracts to represent a client on a contingency fee basis shall, at the time the contract is entered into, provide a duplicate copy of the contract, signed by both the attorney and the client, or the client’s guardian or representative, to the plaintiff, or to the client’s guardian or representative.” The contract must be memorialized in writing, and include statements “of the contingency fee rate[,] ... as to how disbursements and costs incurred in connection with the prosecution or settlement of the claim will affect the contingency fee and the client’s recovery[,] ... as to what extent, if any, the client could be required to pay any compensation to the attorney for related matters that arise out of their relationship not covered by their contingency fee contract[,] [and] ... that the fee is not set by law but is negotiable between attorney and client.” (Bus. & Prof. Code, § 6147, subds. (a)(1)-(4).) The statute provides that “[f]ailure to comply with any provision of this section renders the agreement voidable at the option of the plaintiff, and the attorney

shall thereupon be entitled to collect a reasonable fee.” (Bus. & Prof. Code, § 6147, subd. (b).)

When “a client exercises his right to void a contingency fee agreement, section 6147 does not permit the trier of fact to consider the contingent nature of the fee arrangement in determining a reasonable fee. If the contingency fee agreement is void, there is no contingency fee arrangement. ‘A void contract is no contract at all; it binds no one and is a mere nullity. [Citation.] Consequently, such a contract cannot be enforced.’” ((Fergus v. Songer (2007) 150 Cal.App.4th 552, 573.)

Plaintiff

originally retained JARU in 2019 to represent her on a personal injury claim arising from an automobile accident, for which she signed a seven-page retainer package with JARU on August 5, 2019. (Buendia Decl., ¶ 3, Ex. K.) The parties do not dispute that the 2019 retainer agreement is limited in scope to the 2019 accident. (UMF, ¶ 2.) Plaintiff’s declaration references various dates within the 2019 retainer agreement; however, the attached exhibit does not appear to list any dates, all references to what could be construed as a date are blank lines. (Buendia Decl., Ex. K.) Notwithstanding, Plaintiff’s declaration explains that “Page 1 of Exhibit K, titled ‘Designation of Attorney,’ identifies the date of incident as August 5, 2019. Page 5, titled ‘Waiver of Conflict of Interest,’ identifies the representation as ‘an automobile accident that occurred on or about 8.5.2019.’ Page 7, the Retainer for Legal Services and Power of Attorney, states that the Office is retained ‘to represent Client in connection with a claim for damages arising out of an incident’ and further provides that the representation is ‘for no other matter.’” (Decl., ¶ 3, Ex. K.)

Plaintiff was in

another accident on June 23, 2021, with a Lyft vehicle, which, shortly after, she contacted JARU to represent her. (Kawabata Decl., ¶ 5, Ex. D, SROG No. 5.) It is disputed as to whether Plaintiff signed a contingency fee agreement. Plaintiff attests that she “did not sign a new written contingency fee agreement with JARU for the Lyft Accident.” (Buendia Decl., ¶ 6.) Plaintiff also attests she never received “a duplicate of any executed contingency fee contract for the Lyft matter signed by both JARU and me at the time we reached our understanding about the 2021 matter.” (Buendia Decl., ¶ 7.) JARU attests that Plaintiff signed an additional written contingency fee agreement with JARU for the Lyft Matter, which she executed on June 24, 2021. (Ruszecki Decl., ¶¶ 3-7, Ex. 2.) JARU

provides a contingency fee agreement signed by Plaintiff and dated June 24, 2021. (Ruszecki Decl., Ex. 2.) The agreement does not appear to bear JARU's signature.

On November 7, 2022, Plaintiff terminated JARU through her new counsel, DTLA. (Ryan Decl., ¶ 4; Juarez Decl., ¶ 3-5, Exs. I-J; Buendia Decl., ¶ 8.) A termination letter that DTLA sent to JARU directed JARU to send DTLA any files related to Plaintiff's case or the incident and, if JARU intended to assert a lien, to send DTLA an itemized list of costs for review. (Juarez Decl., ¶ 3-5, Ex. I.) JARU represented Plaintiff in the Lyft matter for sixteen months and fifteen 15 days. (Ryan Decl., ¶ 5.) JARU attests that it "repeatedly advised DTLA that it should disgorge its fee because JARU had reason to believe DTLA engaged in fraud and/or unethical or illegal activity to procure Buendia as a client."^[1] (Ruszecki Decl., ¶ 18.)

Regarding JARU's discovery responses, for Plaintiff's requests for production, JARU responded to eleven of the twelve requests with "[t]he Responding Party will supplement this response and produce any non-privileged, responsive documents, if any, in Responding Party's possession, custody, or control." (Kawabata Decl., ¶ 2, Ex. A.) JARU also responded to Plaintiff's requests for admission and Form Interrogatory No. 17.1, stating that it had contemporaneously-created records reflecting the time spent working on Plaintiff's case. (Kawabata Decl., ¶¶ 3, 6, Exs. B, E.) A declaration in support of Plaintiff's motion declares that JARU never produced documents with its discovery responses, and an email sent by Javier Valdez, JARU's paralegal, confirms that "[n]o documents were produced with those responses." (Kawabata Decl., ¶ 8, Ex. G.) There is no evidence provided that demonstrates JARU ever denied having these documents. Also, JARU provides evidence that it supplemented its time sheets, costs, and the contingency fee agreement from the Lyft crash on July 14, 2026. (Ryan Decl., ¶¶ 9-10, Exs. 1-3.)

Plaintiff asserts that "JARU's claim against the Lyft settlement rests on an asserted contingency fee arrangement entered into on or about June 23, 2021, two years after the 2019 retainer Ms. Buendia signed for an unrelated accident. Here, JARU has produced no writing for the 2021 Lyft retention that complies with section 6147(a). JARU's production includes no executed document containing the contingency rate, cost-treatment provisions, collateral-fee scope, or statutory negotiability disclosure that section 6147(a) requires. (UMF 5 & 6.) Ms. Buendia's declaration establishes that she never signed any such code-compliant

writing for the Lyft matter and that JARU never gave her a duplicate of any signed contingency fee contract for the Lyft matter... With no enforceable contract supporting it, JARU's asserted lien against the proceeds of the Lyft settlement has no contractual foundation. The alleged 2021 arrangement therefore falls within section 6147(b), and Ms.

Buendia exercised her option to void it. As such, Ms. Buendia is entitled to a declaration that JARU has no lien against the proceeds of the Lyft settlement." (Mot., 13:6-22.)

JARU's opposition

contends that "[i]t is not enough for defendants to show merely that plaintiffs have no evidence on a key element of a plaintiff's claim. Defendants must also produce evidence showing plaintiffs cannot reasonably obtain evidence to support that claim." (Opp., 5:9-11.) JARU cites *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891, where the Court of Appeal stated that "pointing out the absence of evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim." JARU asserts that "Buendia failed to make an affirmative showing that JARU cannot prevail or that she would prevail. Buendia asks the Court to declare, as a matter of law, that no enforceable fee arrangement exists between her and JARU for the Lyft matter and therefore JARU should not take any quantum meruit or reimbursement for costs. However, the court cannot trust Buendia's declaration as it has been proven to be verifiably, demonstrably false. Indeed, she signed a valid and enforceable contingency fee agreement with JARU for the 2021 crash. DMF No. 5; COE 2. The 2021 contingency fee agreement Buendia signed permits JARU to take 33 1/3% pre-suit and 40% post-suit, addresses cost reimbursement, and grants JARU a lien on her claim. DMF No. 5; COE 2. She also executed a Designation of Attorney valid for five years authorizing JARU to represent her on her personal injury claim and revoking any prior authorizations. COE 3." (Opp., 5:12-23.) The Court notes that Code of Civil Procedure section 437c, subdivision (e) provides that "[i]f a party is otherwise entitled to summary judgment pursuant to this section, summary judgment shall not be denied on grounds of credibility or for want of cross-examination of witnesses furnishing affidavits or declarations in support of the summary judgment, except that summary judgment may be denied in the discretion of the court if the only proof of a material fact offered in support of the summary judgment is an affidavit or declaration made by an individual who was the sole witness to that fact; or if a material fact is an individual's state of mind, or lack thereof, and that fact is sought to be established

solely by the individual's affirmation thereof." "The entire focus of this statutory language is on the affidavits and declarations submitted by the moving party, not those submitted by the opposing party. The statute effectively provides that the questionable credibility of declarations submitted in support of a summary judgment motion cannot provide a basis for denying the motion when it otherwise should be granted." (Estate of Housley (1997) 56 Cal.App.4th 342, 360, fn. 13.)

JARU further asserts

that "[e]ven accepting *arguendo* Plaintiff's premise that no fully code-compliant 2021 writing exists, section 6147(b) provides only that non-compliance renders the agreement 'voidable at the option of the plaintiff' and that 'the attorney shall thereupon be entitled to collect a reasonable fee.' (Bus. & Prof. Code § 6147(b);

Fergus v.

Songer (2007) 150 Cal.App.4th 552, 572-73.) Voidability under section 6147(b) does not extinguish JARU's right to compensation; it converts a contingent recovery into a quantum meruit recovery. Plaintiff's declaration that JARU has 'no lien' of any kind therefore is unfounded and not legally correct." (Opp., 5:24-6:2.)

In Plaintiff's

response, she asserts that Business and Professions

Code section 6147, subdivision (a), requires an attorney to provide a duplicate copy of the contract and that the contract must be signed by both the attorney and the client. However, Plaintiff contends that "[t]he final page of the form JARU produced (the June 2021 Form) carries two signature blocks. The client block bears a Vinesign capture of Ms. Buendia's name and the date 06/24/2021. The attorney block reads 'DATED: ____ ATTORNEY SIGNATURE: ____,' and both lines are blank. (COE, Ex. 2, Retainer for Legal Services and Power of Attorney.) No attorney signed the agreement JARU asserts creates a lien against the settlement. A duplicate 'signed by both the attorney and the client' could not have been provided when the contract was entered into, because no such document has ever existed." (Reply, 3:17-23.)

Plaintiff further

asserts that "Mr. Ruszecki's assertion that Ms. Buendia received a copy is made '[u]pon information and belief,'" but this cannot stand as the basis for personal knowledge as required by Code of Civil Procedure section 437c, subdivision (d). (Reply, 3:24-27.)

Moreover,

Plaintiff contends a party opposing summary judgment may not produce in opposition what it withheld in discovery. Plaintiff asserts that “JARU’s verified response to Form Interrogatory No. 17.1 identified the evidence supporting its denials: ‘[t]he written retainer/fee agreement’ and ‘[c]ontemporaneously-created records reflecting time spent.’ (UMF 21, admitted undisputed.) JARU then served eleven identical statements of compliance promising to ‘supplement’ and produce responsive documents ‘if any.’ (UMF 19, admitted undisputed.) It produced none, and on February 20, 2026 its paralegal confirmed, ‘No documents were produced with those responses.’” (Reply, 2:21-26.)

Plaintiff cites D’Amico,

supra 11 Cal.3d at pp. 21-22 to stand for the proposition that a party is foreclosed “from manufacturing a triable issue with a declaration that contradicts its own verified discovery.” (Reply, 3:2-3.) Plaintiff asserts that “JARU’s responses were not ambiguous; rather, they promised production and JARU confirmed in writing that no such production occurred. It should not be permitted now to introduce contradictory evidence from the day before its Opposition was due in order to attempt to raise a conflict of material fact.” (Reply, 3:7-10.)

However, the

Court notes that D’Amico, supra, is narrowly applied. In D’Amico, the California Supreme Court expressed that “admissions against interest have a very high credibility value. This is especially true when, as in this case, the admission is obtained not in the normal course of human activities and affairs but in the context of an established pretrial procedure whose purpose is to elicit facts. Accordingly, when such an admission becomes relevant to the determination, on motion for summary judgment, of whether or not there exist triable issues of Fact (as opposed to legal issues) between the parties, it is entitled to and should receive a kind of deference not normally accorded evidentiary allegations in affidavits.” (Id. at p. 22.) To apply, D’Amico requires that JARU’s declaration directly contradicts a previous discovery response. ((See Shin v. Ahn (2007) 42 Cal.4th 482, 500, fn. 12 [the Supreme Court reaffirmed the D’Amico rule, stating that “a party cannot create an issue of fact by a declaration which contradicts his prior discovery responses.”].) Although at the time the motion was filed JARU had not produced discovery documents and confirmed via email that it had not, JARU never denied having the documents it eventually produced. JARU’s dilatory document production does not affirmatively contradict its discovery responses or affidavit submitted in opposition to the

motion for summary judgment. Accordingly, D'Amico does not bar JARU's evidence.

When a plaintiff

moves for summary judgment, they bear the burden of presenting affirmative evidence proving every essential element of their cause of action. ((Code Civ. Proc., § 437c, subd. (p)(1).) Here, Plaintiff presents evidence, via her declaration, that she never signed a contingency agreement for the Lyft accident and that JARU never provided her with a copy of that contingency agreement. Plaintiff's declaration serves as evidence that a contingency fee agreement did not exist. In JARU's opposition, JARU presents evidence of a contingency fee agreement signed by Plaintiff for the Lyft accident. Plaintiff's response points to JARU's evidence of a contingency agreement to assert that the agreement is voidable because it was not signed by JARU and JARU never provided her with a copy. Although JARU calls into question Plaintiff's credibility because her declaration contradicts JARU's evidence, a valid motion for summary judgment "shall not be denied on grounds of credibility." (Code Civ. Proc., § 437c, subd. (e).) The contingency agreement provided by JARU does not comply with Business and Professions Code section 6147. Accordingly, a triable issue of material fact does not exist as to whether the parties had a valid contingency agreement that provides JARU with an enforceable lien against Plaintiff's settlement.

C.

Quantum

Meruit

Plaintiff also

asserts that summary judgment is proper because JARU is not entitled to quantum meruit.

"It is well

settled that a contingency fee lawyer discharged prior to settlement may recover in quantum meruit for the reasonable value of services rendered up to the time of discharge. [Citation.] 'The most useful starting point for determining the amount of a reasonable fee is the number of hours reasonably expended on the litigation multiplied by a reasonable hourly rate. This calculation provides an objective basis on which to make an initial estimate of the value of a lawyer's services. The party seeking an award of fees should submit evidence supporting the hours worked and rates claimed.' [Citation.]" ((Mardirossian & Associates, Inc. v. Ersoff (2007)

153 Cal.App.4th 257, 272.)

On June 6, 2023,

DTLA filed *Buendia v. Lyft, Inc.* in Orange County Superior Court (Case No. 30-2023-01329390-CUPA-CJC), and later settled for \$825,000. (Buendia Decl., ¶ 10.) Plaintiff's undisputed material facts provide that "JARU had no role in the filing or settlement of that action" (UMF ¶ 10); however, the evidence listed in support does not corroborate this statement. JARU attests that its efforts and actions in representing Plaintiff necessarily impacted the settlement of the case, because JARU coordinated Plaintiff's medical care, gathered evidence, investigated liability, prepared Plaintiff's file for pre-litigation demand, and personally accompanied Plaintiff to her medical appointment. (Ruszecki Decl., ¶¶ 9-15.)

Plaintiff

contends that "[w]ithout admissible evidence on the number of hours reasonably expended on the litigation that directly benefitted Plaintiff, there is nothing to value, and thus no triable issue of fact on the question of JARU's entitlement to quantum meruit recovery." (Mot., 14:26-15:2.) Plaintiff asserts that D'Amico forecloses JARU's ability to carry its burden. However, as noted above, the Court does not read D'Amico's holding as broadly as Plaintiff does.

Regarding quantum meruit, JARU contends

that "[i]n determining the reasonable value of services under a quantum meruit theory, the analysis does not end with a calculation of hours worked multiplied by an hourly rate alone." (Opp., 6:14-15.) JARU cites *Mardirossian*

& Associates, Inc. v. Ersoff, supra 153 Cal.App.4th at p. 272, where the court stated that "providing evidence as to the number of

hours worked and rates claimed is not the end of the analysis in such a quantum meruit action. The party seeking fees must also show the total fees incurred were reasonable. Factors relevant to that determination include '[t]he nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure of the attorney's efforts, the attorney's skill and learning, including his [or her] age and experience in the particular type of work demanded.' [Citation.]"

Accordingly, JARU contends that "the determination of reasonable value is not a purely legal question capable of resolution on summary adjudication, but instead requires a fact-specific inquiry into the services performed, the benefit conferred, the complexity of the matter, and the results achieved." (Opp., 6:23-26.) JARU further asserts that "triable issues exist regarding the services JARU performed, the hours of service to the client, the benefit

conferred, the difficulty of the issues involved, the skill required in handling the matter, and the reasonable value of those services.” (Opp., 6:27-7:1.)

Plaintiff’s

opposition contends that JARU’s evidence of its time records should not be admitted and, without this, “JARU has not created a dispute of material fact.” (Reply, 6:7-8.)

The Court finds

that Plaintiff does not carry her burden that JARU is not entitled to quantum meruit. Plaintiff does not provide evidence that JARU did not provide any services for Plaintiff during JARU’s representation of Plaintiff in the Lyft accident. Plaintiff’s absence of evidence that JARU did not provide services for her that warrant fees does not shift the burden to JARU. Notwithstanding, JARU provides a declaration from Plaintiff’s former counsel at JARU, which attests that JARU provided services and support to Plaintiff before she filed suit against Lyft, including attending a doctor’s appointment with Plaintiff. This is evidence of services JARU provided Plaintiff, which could warrant quantum meruit. Accordingly, not only does Plaintiff not carry her burden of proof, but JARU also provides evidence of a triable issue of material fact.

Conclusion

Based on the foregoing, Plaintiff’s motion for summary judgment is GRANTED in part. The Court finds that JARU does not have a valid contingency agreement with Plaintiff. Plaintiff’s motion for summary judgment is DENIED as to quantum meruit.

Plaintiff is ordered to give notice of this Order.

DATED: August
4, 2026 _____

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court

[1] JARU provides a

declaration attesting to DTLA's unethical behaviors. However, JARU's opposing papers do not include a discussion explaining the implications of this. JARU does not direct the Court to a legal basis for how these facts impact JARU's contingency agreement with Plaintiff and lien against her settlement fund.